

25STCV10960 25STCV10960

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Case Number: 25STCV10960 Hearing Date: September 18, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

JUAN DAVILA,

Plaintiff,

vs.

ORALIA PARGA,

Defendant.

Case No.:

25STCV10960

Hearing Date:

September 18, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE]

ORDER RE:

(1) DEFENDANT ORALIA PARGA'S DEMURRER
TO PLAINTIFF'S FIRST AMENDED COMPLAINT

(2) DEFENDANT ORALIA PARGA'S MOTION
TO STRIKE PLAINTIFF'S DECLARATIONS TITLED (1) PLAINTIFF'S [RESPONSE] TO ENTER
PREMISES; (2) PLAINTIFF'S DECLARATION FOR INVASION OF PRIVACY WITHOUT CONSENT
AND ORDER

Background

On April 14, 2025,
Plaintiff Juan Davila, in pro per, filed this action against Defendant Oralia
Parga ("Parga"). On January 5, 2026, Plaintiffs Juan Davila and Dania Manzo
(jointly, "Plaintiffs") filed a First Amended Complaint ("FAC") against Parga,
alleging three causes of action for (1) "damages cause;" (2) breach of
contract; and (3) intentional infliction of emotional distress.

Parga demurs to the FAC
in its entirety. Plaintiffs do not appear to have technically filed an
opposition, but they filed a "response to demurrer declaration to dismissal to
continue with the case." However, the document does not appear to include legal
arguments refuting the assertions in Parga's demurrer.

Additionally, Parga
moves to strike "Plaintiffs' Declarations filed on or about April 6, 2026
pursuant to Code of Civil Procedure section 436."
(Notice of Mot., 2:5-6.) Plaintiffs also filed a response declaration to the
motion to strike, which does not address the concerns raised by Parga's motion
to strike.

Allegations of the FAC

Plaintiffs allege
that they "have been renting in 3525 1/2 Winter St Los Angeles CA 90063 for
over 10 years. I made a contract with Defendant Oralia Parga for residential

agreement Contract on 12/01/2018 which is a 30-day notice of rent increased as a contract as shown in EXHIBIT A which is a 30-day notice with Verbal agreement. As a Breach of contract by all this time defendant continua [sic] with her attacks and actions toward me and my children for the electricity and breaker boil water tampering and the cause of Intentional Infliction of emotional distress and all the damage caused." (FAC, ¶ 1.) Plaintiffs allege that "Defendants open a Unlawful Detainer against me and my family for non-payment rent with the case number 25STUD05239 on 5/12/2025. Defendant lied to the court stating we were served and got a judgement and tried to bribe our witness for money which we filed a Motion to Vacate as me and my wife won our case. The unlawful detainer was negligent because the department of safety and building came to the premises and had an inspection and was told to Defendant to take a wall that was dividing my apartment and she didn't and she still hasn't taken it down for the defendant Negligence on her side." (FAC, ¶ 2.)

Demurrer

A. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In testing the sufficiency of the complaint, the court assumes the truth of properly pleaded factual allegations, facts reasonably inferred from those expressly pleaded, and judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal. 3d 311, 318.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Accordingly, "[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.)

Under Code of Civil

Procedure section 430.10 subdivisions (e) and (f), a demurrer may be filed if the pleading is uncertain or does not state facts sufficient to constitute a cause of action. For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment, otherwise, it is abuse of discretion. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

B. Discussion

a. Meet and Confer

As a preliminary matter, the Court notes that Parga did not orally discuss the demurrer with Plaintiffs. However, in Parga's counsel's declaration in support, she explains that, during a hearing on April 13, 2026, "the parties agreed that future communications from defense counsel would be directed only to Plaintiff Dania Manzo via e-mail. Plaintiff Dania Manzo provided her e-mail address on the record for that purpose." (Quadros Decl., ¶ 10.) The Court notes that the Minute Order from April 13, 2026 states, inter alia, that "[t]he parties agreed that counsel for Defendant would contact Plaintiff's wife Dania Manzo to discuss issues in this case, at Plaintiff's request. Ms. Manzo provided her email address as Daniamanzo323@gmailcom." (Minute Order 4/13/26.)

Parga's counsel further explains that "[p]ursuant to Code of Civil Procedure section 430.41, I made a good faith effort to meet and confer regarding the deficiencies in the FAC. On May 4, 2026, I sent a detailed meet and confer correspondence via e-mail to Plaintiff Dania Manzo consistent with Plaintiffs' request on the record that communications occur by e-mail and through Plaintiff Dania Manzo only." (Quadros Decl., ¶ 14.) "In that correspondence, I identified the specific legal deficiencies in the FAC, including the failure to allege sufficient facts to constitute any cognizable cause of action, the uncertainty and ambiguity of the pleading, and the improper inclusion of conclusory and unsupported allegations. I also offered to discuss the issues telephonically in an effort to avoid unnecessary motion practice." (Quadros Decl., ¶ 15.) However, counsel attests that "[a]s of the filing of this declaration, Plaintiffs have not substantively addressed the deficiencies identified in the meet and confer correspondence." (Quadros Decl., ¶ 16.)

Although the parties did not orally meet and confer, Parga's counsel's explanation for not calling Plaintiffs was to comply with their wishes. The Court finds this a

reasonable explanation, especially given that Parga's counsel's email correspondence requested a phone call, and counsel waited a week thereafter to file the demurrer. Accordingly, the meet and confer attempt is sufficient, and the Court will hear the demurrer on its merits.

b.

First Cause of Action for Damages Cause

Parga demurs to the first cause of action for "damages cause" because damages are a remedy, not a standalone cause of action. (See *Atalla v. Rite Aid Corp.* (2023) 89 Cal.App.5th 294, 323 ["damages must attach to a cause of action"].) Specifically, Parga asserts that "[t]he FAC does not identify any independent legal duty giving rise to a standalone 'damages' claim, nor does it allege the elements of any recognized tort or contract theory within that purported cause of action. Instead, Plaintiffs merely seek monetary relief based on conclusory allegations and generalized dissatisfaction with Defendant's conduct as landlord." (Dem., 14:13-16.)

The Court finds that damages is not a standalone cause of action, and Plaintiffs' response papers do not demonstrate otherwise. In light of this, Plaintiffs have not shown that amendment is possible. Accordingly, the Court sustains the demurrer to the first cause of action, without leave to amend.

c.

Second Cause of Action for Breach of Contract

To state a cause of action for breach of contract, a plaintiff must be able to establish "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) Under Code of Civil Procedure section 430.10, subdivision (g), a demurrer is proper when "an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

The second cause of action for breach of contract states in its entirety, as follows: "I also don't have an emergency exit for me or my

family, my minor children. The defendant Oralía Parga on incident occurred that the Safety Environment from the State of California from Los Angeles County safety department of housing came on the room I and my family is not in a safety condition there is a wall that must be taken down told and given notice to defendant as shown in EXHIBIT D of the wall that must be torn down for unsafety environment Penal Code 402 (Sightseeing at an Emergency): This section prohibits lingering at an emergency scene in a way that hinders first responders. The defendant told me and my girlfriend she would take the unsafe wall down, but my rent will be increased, and I pay for the illegal wall provided by her negligence not following the state lawful code. I requested a copy written from the safety environment to provide to the court of the wall unsafety environment to court on the California Penal Code 135 prohibits anyone from willfully destroying, erasing, or concealing evidence if they know that the item is about to be used in a trial, investigation, or inquiry. It is a misdemeanor offense, punishable by up to six months in jail and a fine of up to \$1,000." (FAC, ¶ 6, emphasis omitted.)

Parga contends that "[t]he pleading does not attach any lease or rental agreement. It does not quote any contractual provision. It does not identify whether the alleged contract is written, oral, or implied. It does not plead the date of formation, the parties to the contract, the consideration, the essential terms, the obligations allegedly imposed on Defendant, or the specific provision allegedly breached." (Dem., 7:22-26.) The Court finds that the lack of clarity regarding what type of contract the parties have, alone, is sufficient to sustain the demurrer. Plaintiffs' assertions are unintelligible and do not adequately allege the nature of the contract Parga allegedly breached.

Parga also discusses the original pleading, stating that it "expressly alleged that Plaintiff 'made a contract' with Defendant based on a '30-day notice of rent increased as a contract.' But a rent increase notice is not, by itself, a complete contract. It does not plead the full rental agreement. It does not set forth habitability obligations, repair obligations, entry provisions, utility obligations, laundry rights, or damages provisions. The notice attached as Exhibit A merely appears to reflect an increase in rent amount; it does not establish the terms of any enforceable contract allegedly breached." (Dem., 7:28-8:5.) The Court notes that Plaintiffs make these same allegations in the FAC, but Plaintiffs do not attach an Exhibit A to the FAC. Attached to the original Complaint as Exhibit A is a "Thirty (30) Day Notice of Rent Increase," as Parga

contends. However, this notice is inadequate to serve as a contract, and it is not attached to the current pleading. Accordingly, the demurrer is sustained with leave to amend. Plaintiffs must clearly plead what type of contract the parties entered into, and the terms of the contract that Parga allegedly breached.

d.

Third Cause of Action for Intentional Infliction of Emotional Distress

"The elements of a prima facie case for the tort of intentional infliction of emotional distress [("IIED")] are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.) "A defendant's conduct is considered to be outrageous if it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. [citations.] Liability for IIED does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007, internal quotations omitted.)

Plaintiffs' FAC

alleges the following for their IIED cause of action: "I also got accused of paying her rent with fake money as she slanders me and accuse and brought a defamation against me Which was a lie on her end. The defendant shows up without any 24-hour notice and tries to enter. The defendant has tried to enter my property or outside my unit taking pictures and tried to enter my property while me and my wife are at work and our children at school as shown in the cameras, I installed in EXHIBIT E. The landlord also doesn't let me install washing and drying machines for her, but other units have them which is not understandable why use her vendetta or malice against me or my family. I have asked several times for repairs. It's a hard time to communicate or have a conversation for any damage or repair. I try to fix it on my own cause she always has remarks and attitude. I have been stressed and harassed since covid she also denied the covid relief programs. I just received a 3 day pay rent or quit as shown in EXHIBIT F threatening, I filed a motion to vacate on Her

Unlawful Detainer with the case me and my wife won. she will get my stuff clothes everything I have in my property with the sheriff without an Unlawful detainer or court order that she can do whatever she wants with my unit. I am willing to pay my rent and it's not a problem as shown in EXHIBIT G with all my receipts I have pay on time without any problem. I have been responsible for my pay of rent." (FAC, 4:6-21.) Additionally, Plaintiffs allege that "[p]ursuant to Civil Case section 51 9. plaintiff is entitled to damages for the emotional distress plaintiffs have suffered and continues to suffer because of defendants conduct. Defendants conduct described herein was done with a conscious disregard for the safety of plaintiff and others so as to constitute oppression, fraud or malice under California Civil Code Section 3294, entitling Plaintiff to punitive damages in an amount appropriate to punish or set an example of defendants." (FAC, 4:23-28.)

Parga asserts that

"[t]he FAC fails to plead facts sufficient to satisfy any of these required elements. Instead, Plaintiffs allege generalized landlord-tenant disputes, complaints regarding repairs, alleged communication difficulties, alleged stress, service of a three-day notice, alleged notices of entry, alleged photographing of the premises, and dissatisfaction with the tenancy relationship generally. Even if accepted as true solely for purposes of demurrer, such allegations do not remotely approach the level of extreme and outrageous conduct required to sustain an IIED claim as a matter of law. None of the factors courts consider in determining whether conduct is 'outrageous' are adequately alleged here. California courts recognize that conduct may be more likely to be deemed outrageous where the defendant occupies a position of power or has a special relationship with the plaintiff that gives the defendant authority over the plaintiff's interests. However, California law is equally clear that ordinary disputes arising within such relationships, including landlord-tenant relationships, do not automatically rise to the level of extreme and outrageous conduct required to sustain a claim for intentional infliction of emotional distress." (Dem., 9:1-14.)

Here, Parga

contends that Plaintiffs' FAC merely alleges various landlord-tenant issues and does not allege conduct that is extreme, outrageous, and intentional or done with reckless disregard. However, the allegations that, on multiple occasions, Parga attempted to enter the property without notice, apparently including times when the occupants were and were not home, and took photos of the outside of the apartment rise to the level of extreme and outrageous behavior for

pleading purposes. Plaintiffs also allege that Parga acted with “vendetta or malice” and Plaintiffs “have been stressed and harassed.” (FAC, 4:12-15.) Thus, the conduct Plaintiffs allege rises above merely being a substandard landlord and reaches the territory of intentional or reckless behavior that is so “extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Crouch v. Trinity Christian Center of Santa Ana, Inc., *supra*, at p. 1007.)

Accordingly, Plaintiffs’ allegations adequately allege the necessary elements for an IIED cause of action, and Parga’s demurrer is overruled.

Motion to Strike

A. Discussion

Parga moves to strike

two of Plaintiffs’ declarations. Parga first asserts that “Plaintiffs have filed two standalone declarations with the Court, unaccompanied by any noticed motion, application, or request for relief. As such, the declarations are procedurally improper and should be stricken or disregarded in their entirety. Under California law, declarations are evidentiary in nature and are admissible only when submitted in connection with a motion or other proceeding expressly authorized by statute. (Code Civ. Proc., § 2009.)

Where, as here, declarations are filed independently and outside the context of any motion, they lack any procedural foundation and are not properly before the Court.” (Mot., 5:3-9.) Parga cites Code of Civil

Procedure section 2009, which states that “[a]n affidavit may be used to verify a pleading or a paper in a special proceeding, to prove the service of a summons, notice, or other paper in an action or special proceeding, to obtain a provisional remedy, the examination of a witness, or a stay of proceedings, and in uncontested proceedings to establish a record of birth, or upon a motion, and in any other case expressly permitted by statute.” The statute does not expressly invalidate independently filed declarations. Rather, it identifies circumstances in which affidavits may be used.

Next, Parga cites Code of Civil Procedure section 436, which allows the Court to “[s]trike out any irrelevant, false, or improper matter inserted in any pleading,” and to “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Emphasis added.) Parga asserts that “Plaintiffs’

declarations fall squarely within this provision. They are not tied to any cognizable request for relief, are not properly noticed, and attempt to place untested factual allegations before the Court outside the framework of motion practice.” (Mot., 5:13-16.) However, the statute is limited to pleadings, and Parga does not assert that Plaintiffs’ declarations are pleadings. (See Code Civ. Proc., § 435, subd. (a)(2) [“The term ‘pleading’ means a demurrer, answer, complaint, or cross-complaint.”].) Accordingly, Parga does not show that this statute applies because Parga is moving to strike two stand-alone declarations, not pleadings.

Parga also contends that

“Courts further retain inherent authority to control their records and to prevent misuse of the judicial process, including the filing of materials that are abusive, irrelevant, or designed to circumvent established procedural safeguards. Plaintiffs’ approach, filing declarations in isolation while asserting serious allegations, invites precisely the type of improper use of court records that these authorities are designed to prevent. Even setting aside these procedural defects, the substance of both declarations independently warrants striking. The declarations are premised on conclusory and speculative assertions, including statements of ‘belief’ unsupported by facts, and allegations of ‘privacy violations’ that, by Plaintiffs’ own description, arise from conduct occurring in shared, non-exclusive areas of the property.” (Mot., 5:17-26.) Courts retain inherent authority to control their docket, in addition to enumerated statutory powers (see e.g., Code Civ. Proc., § 128; *Rutherford v. Owens-Illinois, Inc.* (1997) 16

Cal.4th 953, 967 [“courts have fundamental inherent equity, supervisory, and administrative powers, as well as inherent power to control litigation before them”]); however, this power is not absolute. Parga does not cite any legal or statutory support that allows the Court to strike independently-filed declarations.

Parga also asserts that

“[t]he declaration titled ‘Plaintiff’s Response to Enter Premises’ submitted by Plaintiffs Juan Davila and Dania Manzo should be stricken under Code of Civil Procedure section 436 because it contains improper matter, including legal conclusions, misstatements of law, and irrelevant argument, rather than competent admissible facts. (Code Civ. Proc., § 436, subds. (a), (b).) Declarations are evidentiary in nature and, when submitted, must still be limited to matters within personal knowledge and admissible testimony, not legal briefing by lay parties. (Evid. Code, §§ 702, 800; Code Civ. Proc., § 2009.) Here, the declaration does not simply state facts. It attempts to argue criminal trespass law, demands a

court order, and asserts legal restrictions that do not apply to the conduct at issue.” (Mot., 10:16-24.) As Parga notes, a declaration is an improper avenue to present legal assertions, as declarations must be based on personal knowledge. (See Evid. Code, § 702 [“the testimony of a witness concerning a particular matter is inadmissible unless he has personal knowledge of the matter.”]; Taylor v. Financial Casualty & Surety, Inc. (2021) 67 Cal.App.5th 966, 994 [“Affidavits must cite evidentiary facts, not legal conclusions or ultimate facts.”].) However, as the Court discussed above, the declarations at issue are not subject to a motion to strike under Code of Civil Procedure section 436. Notwithstanding, the Court may exercise its authority to disregard the declarations. Here, both of Plaintiffs’ declarations assert Penal Code violations, which improperly incorporate legal arguments. On this basis, the Court will disregard the declarations.

Lastly, Parga contends that “Plaintiffs’ declarations are improper both procedurally and substantively. They are not authorized filings, they attempt to circumvent established motion practice, and they fail to allege facts sufficient to support any cognizable privacy claim. For these reasons, the Court should strike the declarations in their entirety, or, at minimum, disregard them in ruling on any matter before it.” (Mot., 5:27-6:3.)

The declarations appear to seek relief from the Court. The first declaration titled “Plaintiff’s Respoce [sic] to Enter Premises” states, inter alia, that “we are waiting to get a court order with a judicial counsel from court[,] ... we request to be present in the property after the recordings against my property[,] ... [and] we show proof and evidence of the unlawful detainer with the case number 25STUD05239 we show at court and order to motion to vacate we won and she now wants to hide the evidence and fix the apartment...” (Mot., Ex. A, 2:11-17.) As for the second declaration, named “Plaintiff’s Declaration for Invasion of Privacy Without Consent and Order,” Plaintiffs “are asking to respect my private life and minor children and do the same act and continuing of this acts with a court order or judicial counsel this must be stop or sanctions or a contempt of order.” (Mot., Ex. B, 3:1-3.) However, the Court’s ability to grant relief is limited to certain circumstances. Plaintiffs’ declarations are not properly noticed motions or ex parte applications, which would allow this Court to grant relief. Moreover, it is unclear whether Plaintiffs are attempting to use these declarations in conjunction with or to bolster their FAC. Using the declarations as additions or amendments to the pleadings is procedurally

improper, as Plaintiffs must obtain court approval to amend their pleadings. (See Cal. Rules of Court, rule 3.1324.)

Based on the foregoing, the Court finds that disregarding the declarations is appropriate. Parga does not provide the Court with sufficient legal support to warrant striking the declarations, but the Court is vested with statutory power “[t]o provide for the orderly conduct of proceedings before it” and “[t]o amend and control its process and orders so as to make them conform to law and justice.” (Code Civ. Proc., § 128, subds. (3) and (8).) Thus, without a properly noticed motion or without being filed in support of an opposition to a motion, the Court will not consider freestanding declarations. To properly place assertions in declarations before the Court, Plaintiffs must file them in support of a motion, opposition or reply brief. Accordingly, the Court disregards the declarations.

Parga also provides substantive arguments regarding the merits of Plaintiffs’ invasion of privacy assertion in the declaration. However, in light of the foregoing, the Court finds it unnecessary to analyze the merits of either party’s argument.

Conclusion

Parga’s demurrer to the first cause of action is SUSTAINED without leave to amend. Parga’s demurrer to the second cause of action is SUSTAINED with leave to amend. Parga’s demurrer to the third cause of action is OVERRULED.

Parga’s motion to strike is DENIED. Instead, the Court will disregard the declarations filed on or about April 6, 2026 and titled (1) Plaintiff’s Respoce [sic] to Enter Premises and (2) Plaintiff’s Declaration for Invasion of Privacy Without Consent and Order.

Plaintiffs are ordered to file and serve an amended complaint, if any, within 20 days of the date of this Order. If no amended complaint is filed within 20 days, the Court orders Parga to file and serve an answer to the complaint within 30 days of the date of this Order.

Parga is ordered to give notice of this Order.

DATED: September 18, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court